



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 3, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202202413 (Incident Date: April 14, 2022) regarding Police Officer Andres Uribe, Tax No. 964325 (DADS No. 2023-28668)

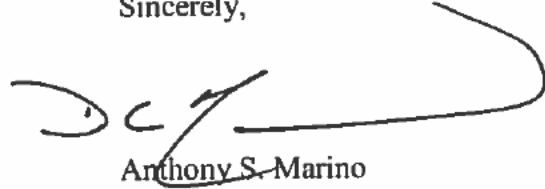
Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the totality of the circumstances surrounding the substantiated allegation against Police Officer Uribe does not warrant disciplinary action. In this encounter, Police Officer Uribe was required to offer § 87(2)(b) a business card, as he stopped him based on a Level 3 Encounter. However, Police Officer Uribe is captured on video footage clearly stating his name and shield number followed by offering his “contact information” twice to § 87(2)(b) which he declines to accept both times. Although Police Officer Uribe did not use the term “business card,” a reasonable person would interpret “contact information” as a reference to his business card. Therefore, in this incident Police Officer Uribe fulfilled his requirements of the Administrative Guide. Furthermore, the CCRB found that Police Officer Uribe did in fact offer his business card to § 87(2)(b) but only substantiated the allegation because, “Police Officer Uribe attempted to offer a business card to § 87(2)(b) in a manner which was only to fulfill a requirement rather than courteously and professionally determining whether § 87(2)(b) wanted a business card by immediately asking another question before § 87(2)(b) had a reasonable time to answer.”¹

¹ See CCRB Investigative Recommendation Report, Page 5.

Therefore, based on the foregoing, Police Officer Uribe will receive no disciplinary action for the alleged violation of Administrative Guide Procedure 304-11 (Compliance with New York City Right to Know Act).

Sincerely,

A handwritten signature in black ink, appearing to read 'Anthony S. Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office